

care that applies in negligence cases.” (*Id.*) Generally, there is no duty to protect others from the conduct of third parties. (*Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 235.)

On the negligence/premise liability claim, liability is based on Yarana’s alleged failure to prevent Davis’ physical assault on Plaintiff. A business owner only owes a duty to patrons to take reasonable steps to secure against foreseeable criminal acts of third parties that are likely to occur in the absence of the precautionary measures. (*Id.* at 235-237.) “[T]he requisite degree of foreseeability rarely, if ever can be proven in the absence of prior similar incidents of violent crime on the landowner’s premises. To hold otherwise would be to impose an unfair burden on landlords and, in effect, would force landlords to become insurers of public safety, contrary to well-established policy in this state.” (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 678-679.) Absent prior similar incidents or other indicators that the risk of violent criminal assaults in the location is reasonably foreseeable, a business owner is not required to secure their property against such a crime. (*Delgado, supra*, 36 Cal.4th at 239-240.)

Yarana has provided evidence that Yarana has operated the business at the location the assault occurred from December 2019 to 2024. (Declaration of Umar Khan, ¶ 2.) Prior to the incident, Yarana had not received and had no record of receiving any report or complaint about Davis. (*Id.* at ¶ 4.) Yarana also had no prior violent incidents at the location before the incident. (*Id.* at ¶ 5.) Yarana’s President also provides that he had no knowledge of any violent incidents at the location before Yarana’s time as franchisee. (*Id.* at ¶ 5.) This evidence meets Yarana’s burden to establish that it did not breach its duty of care due to lack of prior violent incidents at the location and lack of any notice of Davis’ (a third party) violent behavior.

The last applicable cause of action is for negligent hiring or supervision. An employer can be held liable for negligent hiring of an employee, if it was aware or should have been aware that hiring the employee created a particular risk or hazard and that particular risk or harm materializes. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 815.) “To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor’s propensity to do the bad act.” (*Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 902.) This cause of action alleges that Yarana’s employee was unfit and incompetent and this incompetence and unfitness created a risk to Plaintiff. (Complaint, ¶ 41.)

Yarana has provided evidence that it had no knowledge or information that suggests that the employee in question was unfit, incompetent, or a danger to customers. (Declaration of Umar Kahn, ¶ 8.) There are no records of any complaints from customers, venters, or coworkers regarding the employee’s performance, behavior, or fitness for duty. (*Id.* at ¶ 9.) This is sufficient to meet Yarana’s burden that it lacked knowledge of the unfitness of its employee.

No opposition was submitted on behalf of Plaintiff.

Defendant Yarana’s Motion for Summary Judgment GRANTED.

Yarana to submit a proposed order and judgment within 10 days.

Trial Setting Conference continued to July 22, 2026.

CASE #	CASE NAME	HEARING NAME
CVPS2401026	PADJUS HILLS VS COSTCO WHOLESALE CORPORATION	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT OF ELNA PADJUS HILLS

Tentative Ruling: From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.)

A defendant can meet the initial burden by showing that one or more elements of the causes of action cannot be established, or that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action or show that the plaintiff lacks evidence. (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claim fails as a matter of law. (*Erikkson v. Nunnick* (2011) 191 Cal.App.4th 826, 849.) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar, supra*, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence but must show that the plaintiff cannot reasonably obtain such evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

A motion for summary judgment should be granted if no triable issue exists as to any material fact and the moving party is entitled to a judgment as a matter of law. (*Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990, 1002-1003.) "The moving party bears the burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar, supra*, 25 Cal.4th at 850.) Once this burden has been met, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Ibid.*) "Any doubts as to the propriety of granting the motion are resolved in favor of the party opposing the motion." (*American Airline v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1048.) It is improper for the court to weigh the evidence or determine the credibility on a motion for summary judgment or adjudication. (*Binder v. Aetna Life Insurance Co.* (1999) 75 Cal.App.4th 832, 840.)

Plaintiff's Complaint contains two causes of action that are premised upon the same factual allegations: negligence and premises liability.

The elements of a cause of action for negligence are: (1) defendant's legal duty of care toward plaintiff, (2) defendant's breach of duty (the negligent act or omission), (3) injury to plaintiff as a result of the breach (proximate or legal cause), and (4) damage to plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

Premises liability is a form of negligence wherein the owner of the premises is under a duty to exercise reasonable care in the management of such premises to avoid exposing persons to an unreasonable risk of harm. (Civ. Code § 1714, subd. (a); *Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.) To establish premises liability, a plaintiff must prove (a) the defendant was the owner, occupier, or lessor of the premises, (b) the defendant was negligent in the use, maintenance, or

management of the premises, and (c) that the negligence was the cause of injury, damage, loss, or harm to the plaintiff. (*Brooks, supra*, 215 Cal.App.3d at 1619.)

“[A]lthough a store owner is not an insurer of the safety of its patrons, the owner does owe them a duty to exercise reasonable care in keeping the premises reasonably safe. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205.) This includes a duty to make “reasonable inspections of the portions of the premises open to customers” and to “keep the floors safe for patrons’ use.” (*Id.*)

To prove an unsafe condition of property, plaintiff must prove: (1) a condition on the premises created an unreasonable risk of harm; (2) defendant knew, or in the exercise of reasonable care, should have known about it; and (3) defendant failed to repair the condition, protect against harm from the condition, or give adequate warning of the condition. (See *Ortega, supra*, 26 Cal.4th at 1206, emphasis added.)

Dangerous Condition:

Defendants argue the polished concrete walkway surface where Plaintiff fell was not a dangerous condition.

The following are undisputed: Plaintiff was shopping at the Palm Desert Costco Warehouse on March 4, 2022 and did not notice any dangerous condition during the approximately 20 minutes she shopped before her fall. (UF #1-3.) Plaintiff, who was wearing sandals and one contact in her left eye, unloaded her shopping cart and was in the process of paying when her right leg slid out to the side causing her to fall to the ground. (UF #4-9, 14-15.) Plaintiff was not walking at the time of the incident. (UF #10.) Plaintiff’s deposition testimony and the four photographs of Plaintiff taken following the fall show no visible contaminant or dangerous condition on the ground. (UF #12, 19.)

Costco retained Rutledge to perform a coefficient of friction (“COF”) testing of the area where Plaintiff fell, which consists of polished concrete, using a Mark IIIB tribometer. (UF #17-18, 20-24.) The measurements during the dry/uncontaminated testing were between 0.53 and 0.55 within an average value of 0.54. (UF #25.)

Rutledge found that the area where Plaintiff fell is considered slip resistant because any measured COF value greater than 0.40 is considered slip resistant. (UF #27.) Thus, the area where Plaintiff fell met and exceeded the industry standard. (UF #29.) Plaintiff disputes these UFs in the form of an objection as improper expert conclusion Plaintiff’s objections to various portions of the Rutledge’s declaration based on lack of foundation, lack of authentication, speculation, relevance, improper opinion on legal standard, unduly prejudicial, and misleading as meritless. Sufficient foundation has been laid for Rutledge’s qualifications, basis of opinion, and testimony, and any objections Plaintiff asserts goes to weight, not admissibility. (Exhibit F of Defendants Notice of Lodgment.)

In opposition, Plaintiff relies on her deposition testimony wherein she testified she had no prior leg pain, instability or prior episodes of her leg giving way, which supports the argument that it was loss of traction rather than a medical event that caused Plaintiff’s fall. However, the fact that Plaintiff does not have a prior medical condition is insufficient to present a triable issue of material fact that a dangerous condition affirmatively exists.

Actual or Constructive Knowledge:

To prevail on a claim for negligence or premises liability, the “injured plaintiff has the burden of showing that the owner had notice of the defect in sufficient time to correct it but failed to take reasonable steps to do so.” (*Howard v. Omni Hotels Management Corp.* (2012) 203 Cal.App.4th 403, 431.) “Because the owner is not the insurer of the visitor’s personal safety [citation], the owner’s actual or constructive knowledge of the dangerous condition is a key to establishing its liability.” (*Ortega, supra*, 26 Cal.4th at 1206; see *Getchell v. Rogers Jewelry* (2012) 203 Cal.App.4th 381, 385 [“property owner must have actual or constructive knowledge of a dangerous condition before liability will be imposed”].)

Constructive knowledge exists when the dangerous condition was present long enough for a reasonably prudent person to have discovered it. (*Ortega, supra*, 26 Cal.4th at 1206-1207.) Whether the presence of the condition was long enough “is a question of fact for the jury, and the cases do not impose exact time limitations. Each accident must be viewed in light of its own unique circumstances. [Citation.] The owner must inspect the premises or take other proper action to ascertain their condition, and if, by the exercise of reasonable care, the owner would have discovered the condition, he is liable for failing to correct it.” (*Id.* at 1207.)

The following is undisputed: Prior to opening, Costco employees prepare the registers and surrounding area by sweeping the floor, putting away any boxes, and setting up mats behind the register. (UF #40.) Numerous Costco members are shown on surveillance video standing and/or walking on the same walkway surface without any observable slip and falls occurring, including individuals walking through the incident location immediately prior to Plaintiff’s fall. (UF #30.) Costco employees use floor scrubbers to clean the floor using only water and no other product to create a shiny appearance. (UF #36-38.) Moreover, floor scrubbers are not used in the aisles in front of the register. (UF #39.)

Plaintiff disputes UF #39 by asserting the checkout/front-end is a high traffic zone and “may be subject to transient spills and track-in moisture between floor walk interval.” However, Plaintiff presents no evidence that the foregoing was in fact present. Thus, UF #39 is undisputed.

Costco conducted a warehouse floor walk on the day of the incident and did not identify any unsafe conditions or slip and trip hazards. (UF #41.) Plaintiff disputes this UF and argues that the Daily Floor Walk/Safety Inspection Sheet on the day of Plaintiff’s fall does not establish a specific time that Zone 1, the front end/checkout area, was inspected. In reviewing the Daily Floor Walk/Safety Inspection Sheet, it shows that the Front End Area where Plaintiff’s fell is included in the inspection. (Defendants’ Notice of Lodged Documents, Exh. I “Floor Inspection Sheet”) The 9am inspection began at 9:58 and ended at 10:56am. (*Id.*) The Floor Inspection Sheet instructs at the top, “Physically walk down each aisle inspecting for unsafe conditions and potential hazards” and “Place a check mark in each box to indicate that no hazards exist.”(*Id.*) There is a check mark for the 9am inspection for the area where Plaintiff fell.

It is further undisputed that a number of Costco employees working on the floor are provided radios. (UF #42-43.) No radio calls were made prior to Plaintiff’s fall regarding a dangerous condition on the floor where fall occurred. (UF #44.) Plaintiff

disputes UF #44 based on an objection to Rocha's declaration to UF #44. However, Rocha is the current Assistant General Manager for Costco. (Rocha Dec. ¶3.)

The only evidence Plaintiff presents is Costco's admission in discovery responses that "there have been two other claims of incidents occurring between registers within the last 5 years." (Turlington Decl., Exh. 2, Costco's Verified Responses to Plaintiff's Special Interrogatories, No. 11.) However, this evidence does not rebut Costco's evidence that an inspection prior to Plaintiff's fall occurred and no dangerous condition was detected. Plaintiff fails to present any other evidence.

Plaintiff's Evidentiary Objections to Claudia Rocha Declaration numbers 1-10
OVERRULED.

Plaintiff's Evidentiary Objections to Brad Rutledge Declaration numbers 11-15
OVERRULED.

Defendants' Request for Judicial Notice of Exhibit 1, Plaintiff's Complaint, GRANTED.

Defendants' Motion for Summary Judgment GRANTED.

Defendant to submit a revised Proposed Order and a Proposed Judgment.

Jury Trial confirmed for August 7, 2026 pending submission of the Proposed Judgment.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL SPECIAL INTERROGATORIES FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT, SET ONE, AND FOR SANCTIONS BY CARISSA CARRERA

Tentative Ruling: No tentative ruling. Motion to Compel is continued.

The hearing on the Motion to Compel is continued to July 30, 2026. The parties are ordered to **meet and confer via in person, teleconference or phone** for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the motion. As part of the meet and confer process, Plaintiff shall identify the specific items that it believes are subject to the motion and identify with legal support the basis of the deficiencies. Defendant shall provide legal support for their position that the responses are legally sufficient or, in the alternative, how the responses may be amended to cure any legal insufficiency.

After meeting and conferring, the parties shall 10 days before the continued hearing date set above do one of the following:

- (1) Plaintiff vacate the hearing on the motion to compel;
- (2) The Parties file with the court a joint declaration stating the parties have agreed that Defendant will file amended responses before the date set forth above; or